

THIS LICENCE is made the day of
1972 BETWEEN JOHN GORE PHILLIMORE of 8 Bishopsgate in the
City of London Esquire THE HONOURABLE ROBERT GEORGE HUGH PHILLIMORE
of The Mill House Shiplake Henley on Thames in the County of Oxford
a Colonel (retired) in Her Majesty's Army and SIMON JAMES MOSLEY of
28 Lincoln's Inn Fields in Greater London Solicitor (hereinafter
called "the Licensors" which expression shall where the context so
admits include their successors in title) of the one part and RIENZI
FELIZ MORITZ FERNANDO of 20 Hornton Street in the Royal Borough of
Kensington and Chelsea

(hereinafter called "the Licensee(s)" which expression shall include
~~its/his/her/their~~ successors and assigns) of the other part

WHEREAS :

(1) These presents are supplemental to a Lease (hereinafter called
"the Lease") dated the 29th day of December 1904 and made between
The Honourable Sir Walter George Frank Phillimore of the one part and
William Adams Daw of the other part

whereby the premises known as 20 Hornton Street
in the Royal Borough of Kensington and Chelsea (hereinafter called
"the premises") were demised unto the said William Adams Daw

for the term of 99 years from the 25th day of March 1903
subject to the payment of the rent thereby reserved and the covenants
and conditions on the part of the Lessee(s) therein contained

(2) The premises are vested in the Licensors in fee simple in reversion immediately expectant on the said term

(3) The premises are now vested in the Licensee(s) for the unexpired residue of the said term of 99 years subject to the rent and Lessee(s) covenants and the conditions reserved by and contained in the Lease

(4) The Licensee(s) being desirous of executing in and upon the premises the conversion works hereinafter specified has/have requested the Licensors to grant to it/him/her/them licence to execute such conversion works and the Licensors have agreed to grant such Licence upon the terms and subject to the conditions hereinafter expressed

N O W T H I S D E E D W I T N E S S E T H as follows :-

1. The Licensors hereby grant unto the Licensee(s) licence to convert the premises into and use or allow the user of the same as and for one high class private residential self-contained ~~flat/maisonette~~
~~on (each of) the~~ ~~_____ floors/~~ on the ground and basement floors ~~7~~
one high class private residential self-contained flat/maisonette
~~on {each of} the~~ ~~first and second~~ floors/~~on the first and second floors~~ ~~7~~ and
one high class private residential self-contained ~~flat/maisonette~~
~~on the~~ ~~_____ floors/~~ on the third and fourth floors ~~7~~
which said conversion works (hereinafter called "the conversion works") shall be in accordance with the drawing(s) annexed hereto and Numbered 240 P 22 and 240 P 25 which have been approved by the Licensors' Surveyors (hereinafter called "the Estate Surveyors")

2. In consideration of the Licence hereinbefore granted the Licensee(s) for ~~itself/himself/herself/themselves~~ and ~~its/his/her/their~~ assigns hereby ~~(jointly and severally)~~ covenant with the Licensors as follows :-

(1) That no structural or other alteration to the exterior of the premises which may be required for the purpose of the conversion works or the user authorised as aforesaid shall be effected without the approval in writing of the Estate Surveyors first had and obtained

and that within ~~twelve~~ months from the date hereof the conversion works shall be carried out and completed by the Licensee(s) at its/his/her/their own expense in all respects and under the superintendence and to the satisfaction in all things of the Estate Surveyors

- (2) That the Licensee(s) will before commencing the conversion works obtain all necessary planning approval and bye-law consents and comply with all the requirements of the local or other authority or authorities having jurisdiction in the matter
- (3) That no name plate or "To Let" board or any other plate board letters card or sign or any other thing shall save with the consent in writing of the Estate Surveyors first had and obtained be affixed placed painted or attached to or on the premises or any part thereof or in the vicinity thereof
- (4) That the Licensee(s) will make and keep all necessary and proper arrangements for the removal of refuse from the premises
- (5) That each maisonette and each flat constructed within the premises shall not be underlet at a rent of less than £1.00 and £ 50 per. annum respectively so that the aggregate rents produced from the premises shall not be less than £ 300 per. annum
- (6) (i) That the Lease shall in addition to and not in substitution for the existing rent also reserve and make payable from and after the due execution and completion of the conversion works or on the expiration of ~~twelve~~ months from the date hereof whichever shall be the sooner during the residue of the term granted by the Lease the additional yearly rent of $\frac{1}{2}$ 160 £ and the additional yearly garden rate of $\frac{1}{2}$ 9-45 £ (hereinafter called "the additional rent") payable by the like instalments and on the same dates as the existing rent

(ii) Every reference in the Lease to rent including the Lessee{s} covenant to pay the same and the proviso for re-entry in respect thereof shall be read and construed as referring both to the existing rent and the additional rent

(iii) The Licensee~~(s)~~ hereby ~~(jointly and severally)~~ covenant{s} to pay the existing rent and the additional rent as aforesaid

(7) (i) To require all underlessees and tenants of each and every maisonette and flat to be constructed within the premises to enter into covenants identical with those on the part of the Licensee~~(s)~~ herein contained (other than those directly relating to the conversion of the premises into ~~two~~ maisonette{s} and ~~two~~ flat{s}) and in addition to covenant to pay a proportionate share of the costs and expenses of maintaining the premises of which the maisonette{s} and the flat{s} form part and supplying all necessary services and facilities thereto and to covenant to pay all outgoings directly attributable to each maisonette and flat underlet and to observe and be bound by the rules and regulations set out in the Schedule hereto and to require each underlessee and tenant to pay a proportionate part of the Managing Agents fee calculated at the rate of ten per cent of the total management costs

(ii) That (if the Licensee~~(s)~~ shall not personally reside within the premises or supervise the same) the Licensee~~(s)~~ at its/his/her/their own cost and expense will delegate a competent person body or organisation to be responsible for the management of the maisonette{s} and the flat{s} and the supply of all necessary services and facilities required by the underlessees or tenants thereof and to discharge all outgoings and expenses properly payable by the Licensee~~(s)~~ in respect thereof

(8) That the Licensee~~(s)~~ shall and will indemnify and at all times hereafter keep indemnified the Licensors and their successors

in title from and against all liability for costs damages expenses or otherwise which may be incurred by or caused to the Licensors by reason of any complaint claim action or proceeding which may be made or taken by any Local Authority or by any tenant occupier or other person interested in any other house or premises situate in or upon the Kensington Estate of the Licensors or any other person or persons whatsoever in consequence of the conversion of the premises into and/or the user of them as ~~two~~ maisonette(s) and ~~two~~ flat(s) as aforesaid or in consequence of any other act or thing done or carried out by the Licensee(s) or any person or persons claiming through or under the Licensee(s) in exercise or purported exercise of any of the rights or authorities hereby granted or powers or provisions herein contained

- (9) That the Licensee(s) will upon the execution of this Licence pay to the Licensors their costs of and incidental to its preparation and execution and of ~~one~~ duplicate(s) thereof and will also pay the fees of the Estate Surveyors of £10-50 for the approval of the within Licence and their fees in accordance with Scale 2g of the Royal Institution of Chartered Surveyors Scale of Charges and of the Local or other Authorities having jurisdiction in the matter of the conversion works
- (10) That the Licensee(s) will communicate to the Insurance Company with whom the premises are insured against fire full particulars of the conversion works and will obtain the consent of that company thereto and pay any additional premium consequent thereon
- ~~(11) That the Licensee will not permit more than one of the Directors or servants of the Licensee(s), and his family to reside within the premises and will not transfer its Registered Office to the premises or any flat or maisonette~~

~~to be constructed within the same.~~7

- (11) That the Licensee will not permit each of the said maisonettes and each of the said flats to be occupied otherwise as a high class private residence in single family occupation only (the expression "family" having its English meaning)

3. It is the intention of the parties hereto that henceforth the additional rent as well as the existing rent shall be rent reserved by the Lease and that all remedies given by law in respect of rent in arrear shall apply equally to additional rent as to existing rent

4. It is hereby agreed and declared that nothing herein contained or hereby authorised shall in any way prejudice or affect the rights or remedies of the Licensors under the Lease save in so far as such rights or remedies are hereby expressly or by necessary implication varied or modified and all the covenants stipulations conditions and other provisions including the proviso for re-entry in the Lease expressly or impliedly contained shall be deemed to extend and apply to the premises with the conversion works hereby authorised as if the same were repeated and made applicable thereto and the Lease shall be read and construed accordingly and these presents shall not be deemed to authorise any alterations or additions user or conversion other than such as are hereinbefore expressly authorised

IN WITNESS whereof the Licensors ~~and the Licensee(s)~~ have hereunto set their hands and seals ~~and the Licensee has caused its Common Seal to be hereunto affixed~~ the day and year first before written

THE SCHEDULE before referred to :

1. To require all tenants to provide and lay close fitted carpets in all areas (other than the kitchen bathroom and W.C.) of the maisonette(s) and the flat(s) and to cover the floors of the kitchen bathroom and W.C. in such a manner as to prevent annoyance disturbance or discomfort to any other tenant.
2. To refrain from depositing litter refuse goods parcels cases or any other things or articles on or rendering unsightly any common parts of the premises including balconies terraces stairs porches halls and areas
3. To keep the common parts of the premises properly cleansed and adequately lighted during the hours of darkness.
4. To keep all the windows cisterns boiler flues and chimneys of the premises properly cleansed and in particular to clean all

windows once at least in every month and all boilers cisterns chimneys when in use twice at least in every year.

5. Not to do or permit or suffer anything in or upon the premises or any part thereof which may at any time be or become a nuisance or annoyance to the tenants of any other flat or maisonette in the premises or neighbouring properties or injurious or detrimental to the Licensors private residential Kensington Estate and in particular not without consent in writing of the Licensors or the Estate Surveyors to keep any dog or other animal (except a cat) in the premises nor permit any singing or instrumental music therein between the hours of 1.a.m. and 7 a.m. nor to use or permit or suffer to be used any radio gramophone or television set so as to be audible in any adjoining premises if the occupier thereof objects thereto

6. To provide proper covered receptacles for the storage of refuse in a place to be provided for such purpose to the approval of the Estate Surveyors

7. Not to affix or exhibit or paint on any door of the maisonette(s) the flat(s) or the premises or at or near to any of the entrances thereto respectively any plate name or notice except only a plate or card of a type and design to be previously approved in writing by the Estate Surveyors bearing only the names of the occupiers of the maisonette(s) and the flat(s) and without any indication of his or her trade business or profession and not to exhibit in any window or upon any exterior part of the premises or any part of the common entrance halls staircases or landings thereof any trade profession or business notice or advertisement whatsoever

8. To use each maisonette and each flat for the purpose of a high class private residence in single family occupation only (the expression "family" having its English meaning) and in particular

not to take in any paying guests or lodgers.

SIGNED SEALED AND DELIVERED
by the said JOHN GORE PHILLIMORE }
in the presence of :-

SIGNED SEALED AND DELIVERED
by the said THE HONOURABLE
ROBERT GEORGE HUGH PHILLIMORE }
in the presence of :-

SIGNED SEALED AND DELIVERED
by the said SIMON JAMES MOSLEY }
in the presence of :-

SIGNED SEALED AND DELIVERED
by the said RIENZI FELIZ MORITZ }
FERNANDO
~~and the said~~ in the presence }
of :-

THE COMMON SEAL of
.
.
was hereunto affixed in the
presence of :-

Director

Secretary

DATED

1972

THE PHILLIMORE KENSINGTON ESTATE.

J.G. PHILLIMORE ESQ.
AND OTHERS.

- to -

R.F.M. FERNANDO, ESQ.

Draft/

L I C E N C E

- to -

convert into two maisonette(s) and
two flat(s) No. 20 Hornton Street
Kensington, London W.8.

FRERE CHOIMELEY & CO.,
28, Lincoln's Inn Fields,
London, W.C.2.

Ref: G/35

01-405 7878